

24STCV28764 24STCV28764

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-01

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Case Number: 24STCV28764 Hearing Date: July 1, 2026 Dept: 509

Joel Merari Lopez v. Macco Investments Corporation, et al.

(1) DEMURRER TO FIRST AMENDED COMPLAINT

(2) DEMURRER TO FIRST AMENDED COMPLAINT

(3) MOTION TO STRIKE

MOVING PARTY: (1): Defendant Patrol Solutions, Inc.

(2) & (3): Defendant Macco Investments Corporation

RESPONDING PARTY(S): Plaintiff Joel Merari Lopez

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Joel Merari Lopez (Plaintiff) alleges he visited Far East Plaza in Los Angeles on November 2, 2022, and was attacked by security personnel from defendant Patrol Solutions, Inc.; a security contractor hired by defendants Macco Investments Corporation and Los Angeles Chinatown Business Council to provide security services within the Far East Plaza. Plaintiff alleges: (1) negligence; (2) negligent hiring, training, and supervision; (3) intentional infliction of emotional distress; (4) assault; (5) battery; and (6) false imprisonment.

Defendant Patrol Solutions, Inc (Patrol) now demurs to the second and third cause of action in the first amended complaint (FAC). Defendant Macco Investments Corporation (Macco) now demurs to the second, third, fourth, fifth, and sixth causes of action. Plaintiff opposed all motions.

On June 10, 2026, Patrol's demurrer originally came to hearing. The Court ruled that, "Counsel for Plaintiff may file a supplemental brief by 4:00 PM on 06/17/2026 on why the Court should overrule the 2nd COA or give leave to amend. Counsel for Patrol Solutions may have to 06/24/2026, 4:00 PM to file a response." (See 6/10/26 Minute Order.) Both parties timely filed their supplemental briefings.

TENTATIVE RULING:

Patrol and Macco's Demurrer to the Second Cause of Action (negligent hiring, training, and supervision) and Third Cause of Action (intentional infliction of emotional distress) is SUSTAINED.

Macco's Demurrer to the Fourth (assault), Fifth (battery), and Sixth (false imprisonment) Causes of Action is OVERRULED.

Macco's Motion to Strike is DENIED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Moving parties are ordered to give notice, unless waived.

DISCUSSION:

Demurrer to First Amended Complaint

I. Meet and Confer

As to Patrol, the Declaration of attorney Mark T. Domeyer does not reflect that the meet and confer requirement was satisfied. The Domeyer Declaration only attests to attempts to meet and confer telephonically with no actual meet and confer taking place. This is wholly insufficient to satisfy the requirements to meet either telephonically or in person as required by Code of Civil Procedure, section 430.41. However, in the interest of judicial economy, the Court exercises its discretion to address the motion on its merits. The parties are admonished to comply with all meet and confer obligations going forward.

As to Macco, the Declaration of attorney Arnold S. Levine reflects the meet and confer requirement was satisfied.

II. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (*Ibid.*) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn*, at p. 747.) "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Serrano v. Priest* (1971) 5 Cal.App.3d 584, 591.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (*S. Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

III. Analysis

Patrol demurs to the second cause of action for negligent hiring, training, and supervision and the third cause of action for intentional infliction of emotional distress. Macco demurs to the second, third, fourth, fifth, and sixth causes of action.

As an initial matter, Patrol disputes the request for punitive damage for the first time on reply. As this issue was not addressed on demurrer and no motion to strike was concurrently filed, the Court declines to consider this argument. (See *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 163–164, [“The adequacy of the punitive damage allegations could, however, have been tested by motion to strike.”])

A. Second Cause of Action (Negligent Hiring, Training, and Supervision)

Both Patrol and Macco demurs to the second cause of action on similar grounds. Namely, Plaintiff has failed to sufficiently allege this cause of action. The Court agrees.

“California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee.” (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.) The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer’s hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837.) “The negligence standard articulated by C.A. for hiring, supervising, or retaining an assaultive employee—knew or should have known or know or have reason to know allows for imposing vicarious liability on an employer based on the supervisory personnel’s constructive knowledge that an employee is prone to misconduct.” (*Juarez v. San Bernardino City Unified School Dist.* (2024) 106 Cal.App.5th 1213, 1228.)

Here, the FAC states “PATROL, and DOES 1 to 100, and each of them, inclusive, hired and/or otherwise employed the DOE SECURITY GUARDS at the FAR EAST PLAZA.” (FAC ¶39.) “Defendants MACCO, LACBC, PATROL, and DOES 1 to 100, and each of them, inclusive, had a duty and obligation to train, supervise, and control the conduct of their employees and/or hired security personnel, as well as to provide, or ensure the adequate provision to, said employees/hired personnel with adequate guidelines to perform their duties in a safe and reasonable manner.” (FAC ¶40.)

Plaintiff further alleges:

However, Defendants MACCO, LACBC, PATROL, and DOES 1 through 100, and each of them, inclusive, negligently hired, failed to train, monitor, supervise, and/or control their employees and/or hired security personnel, and maintain their property in a reasonably safe condition, in one or more of the following respects:

a) Failing to properly vet, select, hire, train, retain, qualify, train, monitor and/or supervise the DOE SECURITY GUARDS;

b) The Defendants PATROL and DOES 1 to 100, and each of them, inclusive, failed to properly implement proper conflict resolution protocols, resulting in DOE SECURITY GUARDS failure to utilize nonviolent methods for conflict resolution and instead resort to the immediate physically assault of Plaintiff LOPEZ;

c) The Defendants MACCO, LACBC, and DOES 1 to 100, and each of them, inclusive, negligently hired employees and/or other agents or representatives to perform security services at the FAR EAST PLAZA without conducting a reasonable inquiry into their competency.

d) Defendants MACCO, LACBC, and DOES 1 to 100, and each of them, inclusive, failed to adequately train, monitor, supervise, and/or control their employees and/or hired security personnel, allowing a physical altercation to escalate into the physical assault of the Plaintiff; and

e) Otherwise acting without the reasonable care required under the circumstances.

(FAC ¶41.)

In the FAC, Plaintiff fails to allege facts that demonstrate that Patrol or Macco knew or should have known the Doe Security Guard was prone to misconduct. Instead, Plaintiff conclusively alleged that Patrol or Macco failed to properly vet, select, hire, train, retain, qualify, train, monitor and/or supervise the DOE SECURITY GUARDS. A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law.” (S. Shore Land Co. v. Petersen, supra, 226 Cal.App.2d at p. 732.) As a result, there are insufficient factual allegations to demonstrate negligent hiring, retention, or supervision.

In opposition, Plaintiff instead argues that Patrol retained Doe Security Guard after the interaction with Plaintiff which creates an independent action for negligent retention. (Opp. at p. 7.) This is unsupported. Plaintiff states that “[t]his conscious retention with knowledge of unfitness establishes negligent retention as an independent basis for liability. Cruz v. Homebase (2000) 83 Cal. App. 4th 160, Egan v. Mut. of Omaha Ins. Co. (1979) 24 Cal. 3d 809.” (Mot at p. 7:22-24.) However, first, Cruz v. Homebase (2000) 83 Cal.App.4th 160 is entirely inapplicable. The Court in Cruz held that an award for punitive damages was improperly awarded where “there was no evidence that [defendant’s] officers, directors, or managing agents had actual knowledge that [employees] had acted maliciously.” (Id. at p. 168.) Likewise, Egan v. Mut. of Omaha Ins. Co. (1979) 24 Cal.3d 809 discusses corporate ratification and does not discuss negligent hiring, retention, supervision at all. Instead, a claim for negligent hiring, negligent retention, or negligent supervision is based upon the fact that the employer knew or should have known that hiring, retaining, or failing to supervise the employee created a particular risk or hazard and that particular harm materialized. (Doe v. Capital Cities, supra, 50 Cal.App.4th at p. 1054; Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1213-1214.) Here, the harm (the interaction with Plaintiff) occurred before the allegation that Patrol decided to retain the security guard. Therefore, the harm to Plaintiff could not have materialized from Patrol’s decision to retain the security guard.

Further, Plaintiff argues that “[t]he FAC need not plead specific prior incidents or background details to establish unfitness when the very conduct at issue demonstrates unsuitability for the role. The pleaded conduct speaks to fitness for the position.” (Opp. at p. 8:7-9.) However, as discussed above, there are no factual allegations that Patrol knew or should have known prior to this incident that hiring, retaining, or failing to supervise the employee created a particular risk or hazard. Indeed, the argument that Patrol should have known Doe Security Guard had a propensity to assault Plaintiff because Doe Security Guard assaulted Plaintiff appears to be cyclical.

In supplemental briefing, Plaintiff asserts that the allegations of the FAC are sufficient. Plaintiff argues that alleging Patrol “failed to vet” the Doe Security Guard is the ultimate facts necessary to sustain a cause of action. However, this is insufficient. The cause of action does not rely on failure to vet Doe Security Guards, but rather, a specific knowledge of harm that materialized as discussed above. Therefore, Plaintiff has not pled the ultimate facts required to sustain this cause of action.

Further, Plaintiff argues that negligent training and supervision does not require prior knowledge of an individual’s propensity. (Supp. Brief at p. 7.) While the Court disagrees with Plaintiff’s interpretation of this specific cause of action, the Court would come to the same conclusion following Plaintiff’s interpretation. If, as it appears, Plaintiff is seeking to allege Patrol and Macco were directly negligent through their lack of supervision, Plaintiff has already done so through its first cause of action for negligence. Plaintiff would therefore be alleging two identical causes of action for negligent conduct arising out of the same duty, the same breach, and the same damages. (See FAC ¶134, [“As such, Defendants breached their duty of care by negligently acting or omitting to act to protect Plaintiff LOPEZ, including but not limited to: a) failing to implement proper conflict resolution protocols; b) failing to utilize nonviolent methods for conflict resolution; c) failing to adequately de-escalate conflict; d) negligently failing to exercise due care to protect their business invitees from a harmful situation; and/or e) negligently placing Plaintiff LOPEZ in a harmful situation that could foreseeably result in injuries.”]) A demurrer may be sustained as to a claim that duplicates another. (Levy v. Only Cremations for Pets, Inc. (2020) 57 Cal.App.5th 203, 215; Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) In general, pleading multiple negligence-based actions may be superfluous. (See e.g. Holcomb v. Wells Fargo Bank, NA (2007) 155 Cal.App.4th 490, 501.) The demurrers would be sustained on this ground independently.

Accordingly, Patrol and Macco's demurrer to the second cause of action for negligent hiring/retention/training is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

B. Third Cause of Action (Intentional Infliction of Emotional Distress)

Both Patrol and Macco demurrer to the third cause of action on grounds that Plaintiff has failed to sufficiently allege a cause of action. The Court agrees.

"The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

Here, Plaintiff alleges that "DOE SECURITY GUARDS abused their position of authority when they intentionally, recklessly, and wantonly exercised their actual and/or apparent authority, including without limitation, their position of authority as a security guard when they subjected him to harassment, assault, threats of violence, actual violence upon his person, and humiliation in front of the patrons of the FAR EAST PLAZA." (FAC ¶52.) "Plaintiff is informed and believes, and thereon alleges, that at all times relevant herein, the violent conduct of DOE SECURITY GUARDS in the face of Plaintiff's lack of any offense is outrageous conduct for security guards who are meant to protect business invitees from harm." (FAC ¶53.) "[T]he violent conduct of the DOE SECURITY GUARDS was intended to cause emotional distress in Plaintiff LOPEZ to keep him unbalanced and easier to subdue as they had no intention to de-escalate the confrontation. Said emotional distress was apparent when Plaintiff attempted to defend himself as he was completely overwhelmed. Then, when the third DOE SECURITY GUARD became involved, he also made no attempt to de-escalate and, instead proceeded to further escalate the confrontation." (FAC ¶55.)

Here, the FAC does not allege extreme or outrageous conduct by Macco, Patrol, or by the Doe Security Guards. "Severe emotional distress means . . . emotional distress of such substantial quantity or enduring quality that no reasonable man in a civilized society should be expected to endure it." (Fletcher v. Western Nat. Life Ins. Co. (1970) 10 Cal.App.3d 376.) "[I]t is not enough that the defendant has acted with an intent which is tortious or even criminal, or that he has intended to inflict emotional distress, or even that his conduct has been characterized by 'malice,' or a degree of aggravation which would entitle the plaintiff to punitive damages for another tort." (Cochran v. Cochran (1998) 65 Cal.App.4th 488, 496.) "Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community." (Ibid.) While there is no bright-line as to what constitutes outrageous conduct and thus this involves a case-by-case analysis, courts can determine whether conduct was sufficiently outrageous at the demurrer stage. (Id. at p. 494.) Here, taking all allegations in the FAC as true, Doe Security Guards conduct does not "exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek, supra, 207 Cal.App.4th at p. 1009.)

Accordingly, Patrol and Macco's demurrer to the third cause of action for intentional infliction of emotional distress is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiffs can make an adequate offer of proof at the hearing that a successful amendment is reasonably

possible.

C. Fourth, Fifth, and Sixth Causes of Action Against Macco (Assault, Battery, and False Imprisonment)

Here, Plaintiff alleges all three causes of action against Macco on the theory of respondeat superior. Macco challenges this pleading as Macco did not employ Doe Security Guards. While the Court agrees there is no factual allegations that Macco employed or otherwise controlled Doe Security Guards, Plaintiff sufficiently alleges Macco is an alter ego of Patrol.

“[R]espondeat superior liability attaches if the activities that cause[d] the employee to become an instrumentality of danger to others’ were undertaken with the employer’s permission and were of some benefit to the employer or, in the absence of proof of benefit, the activities constituted a customary incident of employment.” (Purton v. Marriott International, Inc. (2013) 218 Cal.App.4th 499, 509.) Because it can be difficult to demonstrate “that a corporation is directly liable for the actions of its employees or agents,” respondeat superior “can allow a plaintiff to proceed against a corporation that could have been liable under a burdensome direct liability theory.” (Presbyterian Camp & Conference Centers, Inc. v. Superior Court (2021) 12 Cal.5th 493, 515) “‘Employee[s]’ include most persons ‘in the service of an employer under any ... contract of hire’ ..., but do not include independent contractors.” (S. G. Borello & Sons, Inc. v. Dept. of Indus. Rel. (1989) 48 Cal.3d 341, 349.)

The FAC alleges “Defendant MACCO owned and operated” the location where the incident took place. (FAC ¶12.) “PATROL is a security contractor hired by Defendant MACCO and/or LACBC to provide security services within FAR EAST PLAZA.” (FAC ¶4.) These allegations support Macco’s argument that Macco is not the employer, but rather the entity that hired Patrol to employ security guards. These allegations demonstrate that Macco is not liable under respondeat superior. (See McCullar v. SMC Contracting, Inc. (2022) 83 Cal.App.5th 1005, 1013, “[T]he court has ‘endorsed a ‘strong policy’ of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor.”)] As alleged, Macco delegated authority, and therefore tort liability, to Patrol. The demurrer would be sustained on these grounds.

However, Plaintiff is alleging Macco is an “alter-ego” of Patrol. (FAC ¶19) While merely conclusory, this is still sufficient to survive on demurrer because alter-ego liability can be pled in a conclusory fashion. (Los Angeles Cemetery Ass’n v. Superior Court of Los Angeles County (1968) 268 Cal.App.2d 492, 494.) This is partly because the ordinary plaintiff will not know the facts that would support alter ego at this early stage (see Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-550), and partly because alter ego can be raised at trial even if it isn’t part of the pleadings. (See Hennessey’s Tavern, Inc. v. American Air Filter Co. (1988) 204 Cal.App.3d 1351, 1358.) Therefore, Macco would be vicariously liable for Doe Security Guards tortious conduct solely as an alter ego of Patrol.

Still, the Court is acutely aware of Macco’s argument that it is not an alter-ego of Patrol and the apparently contradictory allegations in Plaintiff’s FAC. However, a demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court, supra, 153 Cal.App.3d at p. 905.) If Plaintiff has a good faith basis for alleging Macco is an alter-ego of Patrol, Plaintiff is allowed to plead as much. (Los Angeles Cemetery Ass’n v. Superior Court of Los Angeles County, supra, 268 Cal.App.2d at p. 494 [“Since, ...petitioner intends, in good faith, to pursue a theory of liability as to which it already possesses some data ... we think that it was an abuse of discretion to deny it the opportunity to obtain information relevant to its theory.”]) It appears that Plaintiff is representing to this Court that Plaintiff has a good faith basis for making such allegations. Therefore, the disposition of whether Macco is an alter-ego is better left to other motion types. (See Zoran Corp. v. Chen (2010) 185 Cal.App.4th 799, 811 [“Whether a party is liable under an alter ego theory is normally a question of fact.”])

Accordingly, Macco’s Demurrer to the fourth, fifth, and sixth causes of action are **OVERRULED**.

Motion to Strike

I. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro. § 436.)

II. Analysis

Macco moves to strike Plaintiff's prayer for punitive damages in the FAC.

Civil Code, section 3294 provides that "[i]n an action for the breach of an obligation not arising from contract where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant."

As defined in Section 3294(c):

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means that a defendant intentionally misrepresented or concealed a material fact and did so intended to harm a plaintiff.

Additionally:

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

(Civ. Code, § 3294, subd. (b).)

Here, because of the concurrent demurrer, the causes of action against Macco include negligence and three causes of action for intentional torts solely as the alter ego of Patrol. As a result, the claim for punitive damage exists only to the extent they exist against Patrol. (See *Kendall Yacht Corp. v. United California Bank*, (1975) 50 Cal.App.3d 949, 958, ["Mere negligence, even gross negligence, is not sufficient to justify such an award" for punitive damages.])

Here, Plaintiff has pled sufficient facts of malice, oppression, or fraud against Patrol to justify the award of punitive damages against Patrol and therefore, Macco as the alter-ego.

Plaintiff alleges that DOE SECURITY GUARDS' misconduct was willful, wanton, and malicious within the meaning of California Civil Code § 3294. Further, the DOE SECURITY GUARDS, and specifically the lead guard/shift supervisor among them, acted as managing agents of Defendant PATROL, exercising substantial discretionary authority over PATROL's security operations at the FAR EAST PLAZA as alleged in Paragraphs 23 through 25 herein. Said managing agent had actual knowledge of, personally participated in, and consciously ratified the malicious conduct alleged herein. Additionally,

PATROL's officers, directors, and/or managing agents at the corporate level, with actual knowledge of the assault on Plaintiff as alleged in Paragraphs 24 through 25 herein, consciously ratified said conduct by retaining the DOE SECURITY GUARDS without discipline or remediation. As such, Plaintiff is entitled to recover punitive and exemplary damages from Defendant PATROL, and all Defendants, according to proof at trial.

(FAC ¶87.)

By alleging a managing agent of Patrol was on scene at the time of incident and "personally participated in" the tortious conduct, Plaintiff has alleged sufficient facts to support an award of punitive damages against Patrol and, therefore, Macco as the alter-ego.

Accordingly, Macco's motion to strike Plaintiff's request for punitive damages is DENIED.

IT IS SO ORDERED.

Dated: July 1, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.